



U.S. Department
of Transportation

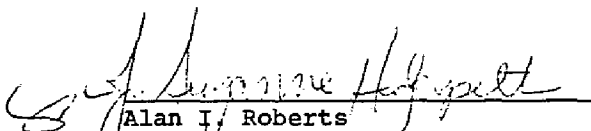
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8195 (EXTENSION)
FOURTH REVISION June 27, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8195 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JAN 11 1993
(DATE)

Dist: PHWA FRA FAA

EXEMPTION HOLDER

APPLICATION DATE

McDonnell Douglas Corporation
St. Louis, MO

November 19, 1992



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8195
(THIRD REVISION)

AUG 12 1987

1. McDonnell Douglas Corporation, St. Louis, Missouri, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of flammable liquids, corrosive materials, and Class B poisons for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes use of non-DOT specification metal drums as outside packagings in lieu of prescribed DOT specification fiberboard and wooden boxes and exempts the inside containers from 49 CFR section 173.6(b)(3) when these non-DOT specification outside packages comply with section 173.6(b)(3), and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on McDonnell Douglas Corporation's application dated July 5, 1985, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon and additional information submitted in letter dated April 9, 1987.

3. HAZARDOUS MATERIALS (Descriptor and class). Hazardous materials in the list entitled "HAZARDOUS MATERIALS SHIPPED UNDER DOT-E 8195" submitted with letter of April 9, 1987, classed as flammable liquids, corrosive materials and Class B poisons; also other materials specifically identified to and acknowledged in writing by this office.

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific chemical name or generic commodity description as appropriate.

5. REGULATION AFFECTED. 49 CFR Part 173, Subpart D, F, and H; 173.6(b)(3); 175.3.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, passenger-carrying aircraft, cargo aircraft only.

7. SAFETY CONTROL MEASURES. Outside packagings prescribed are steel drums complying with the Military Specifications (Mil Spec Drums), specified in applicant's petition dated April 23, 1979, in lieu of DOT specification fiberboard or wooden boxes that are required as outside packaging in 49 CFR parts 100-177, for hazardous materials listed in the attachment to McDonnell Douglas Corporation's letter dated April 9, 1987. When these Mil Spec Drums are used as the outside packaging and meet the pressure requirements of 49 CFR 173.6(b)(3), inner containers (primary packages) approved for shipping the herein specified hazardous materials are exempted from the pressure requirements of 173.6(b)(3). Only one hazardous material may be shipped in any one steel drum. These drums may be consolidated in accordance with the requirements of 49 CFR 173.25. Battery, electric storage, wet, filled with acid, battery, electric storage, filled with alkali and nitric acid, 40% or less, may not be shipped on passenger-carrying aircraft.

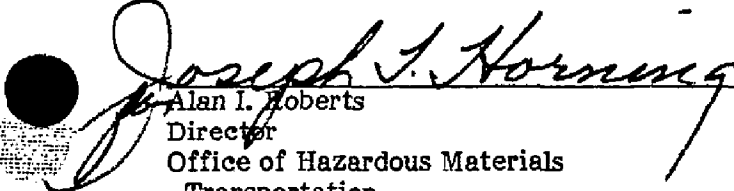
8. SPECIAL PROVISIONS.

- a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
- b. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.
- c. For international air shipments, this exemption authorizes the use of Mil Spec Drums in place of the DOT specification drums that are required to be used to meet the Transitional Packaging Arrangements in Part 3, Chapter 1, Section 1.4 of the ICAO Technical Instructions.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. May 15, 1989.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

AUG 12 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590 Attention: Exemptions Branch.

Dist: FAA, FHWA, FRA